

LEGAL OFFICE PROCEDURES (245)

STATE – 2019

PART 1 - Objective:

Multiple Choice & True/False (40 @ 2 points each) _____ (80 points)

Part 2 - Production:

Job 1: Affidavit _____ (100 points)

Job 2: Interrogatories _____ (100 points)

TOTAL POINTS _____ **(280 points)**

Failure to adhere to any of the following rules will result in disqualification:

1. Contestant must hand in this test booklet and all printouts. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests or facsimile (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

No more than ten (10) minutes orientation

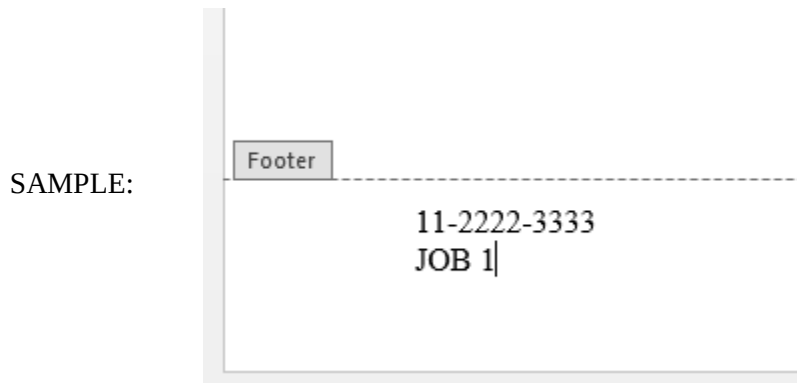
No more than sixty (60) minutes testing time

No more than ten (10) minutes wrap-up

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Workplace Skills Assessment Program competition.

General Instructions

1. Use the Scantron scoring sheet provided for the objective portion of the test.
2. Ensure this test booklet contains Jobs 1-2.
3. Key all jobs according to the instructions provided
4. Correct any obvious keyboarding errors and incorporate any editing notations.
5. Correct any errors in formatting Use formatting shown in the *Style & Reference Manual*.
6. For any problem where you would normally key your reference initials, key your contestant number. Your name or initials should *not* appear on any work you submit.
7. Key your contestant number and job number as the footer in the lower left-hand corner of all work submitted unless otherwise specified.



8. If you finish before the end of the allotted testing time, notify the proctor. Time may be a factor in determining a winner when there is a tie score.
9. When turning in your materials, place your scoring sheet on top of your jobs. The jobs should be in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

PART I – OBJECTIVE

MULTIPLE CHOICE

Identify the letter of the choice that best completes the statement or answers the question.

1. What term describes a person authorized by law to administer oaths, collect statements, and witness signatures?
 - A. Marshal
 - B. Legal tenant
 - C. Programmer
 - D. Notary public
2. Mayhem is a crime against _____.
 - A. a person
 - B. property
 - C. public decency
 - D. public authority
3. An attorney's trust account holds funds that _____.
 - A. can be used to buy office furniture
 - B. belong to the attorney
 - C. belong to someone else
 - D. pay office staff
4. Someone involved in a lawsuit is called a _____.
 - A. Libertarian
 - B. Librarian
 - C. Litigant
 - D. Liberal
5. What is the term for a jury that is kept separated from outside influences during a trial?
 - A. Sequester
 - B. Jury separation
 - C. Segregation
 - D. Isolation
6. What term describes an action taken in a case upon the application of one party alone?
 - A. Writ of Certiorari
 - B. Pro se
 - C. Stare Decisis
 - D. Ex parte
7. What is certified mail?
 - A. A delivery made by the sheriff.
 - B. A special mailing sent to the court clerk by hand delivery.
 - C. A piece of first-class mail which provides proof of mailing and delivery without indemnity for loss or damage.
 - D. A class of mail which is sent by Federal Express.

8. What is the term for an individual who sues on behalf of an entire group? For this to occur, the court *must* find that all members have certain facts in common.
 - A. Case totality
 - B. Class action
 - C. Enlarged lawsuit
 - D. Total litigation
9. Second-hand information that is repeated from a conversation that a witness was told by someone else and *not* personally present to see or hear it is called _____.
 - A. displaced information
 - B. hearsay
 - C. untrue testimony
 - D. second-hand evidence
10. What is the *correct* citation abbreviation for the American Jurisprudence, Second Series?
 - A. Am. Jur. 2d
 - B. AJ2nd
 - C. A.J.2d
 - D. Am. Jur. 2nd
11. What term describes the formal giving or pronouncing of a judgment or decree in a cause?
 - A. Adjudication
 - B. Answer
 - C. Affidavit
 - D. Proclamation
12. Evidence is defined as _____.
 - A. directives of a judge
 - B. only that physical material collected by criminal investigators
 - C. testimony, writings, or material objects offered as proof of an alleged fact or proposition
 - D. whatever a witness says
13. A deposition can be defined as _____.
 - A. testimony of a witness or a party given under oath in the courtroom
 - B. the legal position of the defendant
 - C. testimony of a witness or a party taken under oath outside the courtroom
 - D. None of the above
14. A response to a complaint is called _____.
 - A. Response to Complaint
 - B. Explanation of Claim
 - C. Answer
 - D. Reply by Defendant

15. What is the term for an intentional *false* verbal communication that injures another's reputation or good name?
 - A. Slander
 - B. Voice liability
 - C. Defamation
 - D. Slam tactic

16. Which of the following would *not* be a crime against a person?
 - A. Homicide
 - B. Battery
 - C. Kidnapping
 - D. Embezzlement

17. A crime punishable by death or imprisonment in a state or federal prison is a _____.
 - A. tort
 - B. misdemeanor
 - C. felony
 - D. demeanor

18. An acknowledgment is a _____.
 - A. petition containing authorized signatures
 - B. formal declaration of intent to purchase
 - C. formal statement made before an authorized individual in which the signer acknowledges that he signed the document
 - D. declaration made by two parties to a contract, giving full agreement to the conditions and terms

19. Criminal matters take precedence over civil matters as provided for by the _____.
 - A. federal statute
 - B. state constitution
 - C. state statute
 - D. U.S. Constitution

20. The legal support staff are primarily concerned with _____.
 - A. procedural law
 - B. civil law
 - C. administrative law
 - D. substantive law

TRUE/FALSE

Mark "A" if the statement is True. Mark "B" if the statement is False.

21. Pleadings are documents used in court actions or litigation.
 - A. True
 - B. False
22. Jurisdiction means the place or county where the facts are sworn to or where the case is to be tried.
 - A. True
 - B. False
23. Pleadings are documents used in court actions or litigation.
 - A. True
 - B. False
24. A "notice of *lis pendens*" is an office-typed pleading containing the title of the case and giving notice to the world that the property described in the case is the subject of legal action.
 - A. True
 - B. False
25. The object of criminal remedy is to deter crime in the form of compensatory damages.
 - A. True
 - B. False
26. The first impression given by the legal office staff can have an important bearing and a lasting influence upon the relationship between the attorney and the client.
 - A. True
 - B. False
27. In preparing legal documents, sometimes you have to sacrifice neatness and correctness for speed.
 - A. True
 - B. False
28. Civil litigation includes contract actions and tort actions.
 - A. True
 - B. False
29. Legal actions may be of a criminal or civil nature.
 - A. True
 - B. False

30. Neither the plaintiff nor the defendant is allowed to be represented by counsel in a small claims court action.
 - A. True
 - B. False
31. Pleadings are documents used in court actions or litigation.
 - A. True
 - B. False
32. A demurrer raises an issue of law as to the legal sufficiency of the complaint.
 - A. True
 - B. False
33. The shareholders select the officers of a corporation
 - A. True
 - B. False
34. All original pleadings must be filed with the court.
 - A. True
 - B. False
35. When legal papers are said to be “conformed,” this means that they are to be made identical.
 - A. True
 - B. False
36. The original of a document filed with the court clerk is retained by the attorney’s office for safekeeping.
 - A. True
 - B. False
37. All answering pleadings must contain verifications.
 - A. True
 - B. False
38. An executed document is one that is signed by all parties thereto.
 - A. True
 - B. False
39. A verification may be on a separate page attached to a court document.
 - A. True
 - B. False
40. A criminal act may be an act omitted as well as committed in violation of the law.
 - A. True
 - B. False

PART 2 – PRODUCTION

Instructions: Review the directions for the “Jobs” listed below and complete. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.

JOB 1 - Affidavit

Prepare the following Affidavit according to the *Style & Reference Manual*.

In the State of WI, County of Trempealeau, I, Nick G. Bradshaw, upon oath, state as follows: 1. That I am the Owner of Top Gun Jacket Creators, located in Trempealeau County, Wisconsin. 2. That on May 16, 2018, Wednesday, Peter Mitchell delivered a black naval aviator jacket to Charlotte Blackwood. 3. That on May 16, 2018, Wednesday, Charlotte Blackwood paid Peter Mitchell \$750 in form of a bank check for the delivered jacket. Leave a signature line for Nick G. Bradshaw and list a witness statement for the notary public.

JOB 2 - Interrogatory

Prepare the following Interrogatory according to the *Style & Reference Manual*.

In the circuit court of the ninth judicial circuit in and for Trempealeau County, WI. Peter Mitchell, plaintiff versus Thomas Kazansky, defendant with Case # TG-2018-5161986 Interrogatory 1. Please state your name and current address. 2. List all former names and when you were known by those names. State all addresses where you have lived for the past seven (7) years, the dates you lived at each address, your Social Security number, and your date of birth. 3. What is your occupation, business or profession? 4. List all business, commercial, and professional licenses which you now hold or which you have held in the last 5 years. 5. Do you have a valid driver's license with a motorcycle endorsement? If yes, what state and expiration date? 6. Have you ever been stationed aboard the USS Enterprise? If yes, what dates? 7. Please state if you have ever been a party, either plaintiff or defendant, in a lawsuit other than the current matter and if so, state whether you were plaintiff or defendant, the nature of the action, and the date and court in which such suit was filed. Include a line for the attorney of record.